Shakarpur Titled As State vs . Hari Shankar @ Mula. He Proved on 7 November, 2022

IN THE COURT OF MS DEEPALI SHARMA:
ADDITIONAL SESSIONS JUDGE -04: EAST DISTRICT
KARKARDOOMA COURTS: DELHI

CNR No. DLET01-000832-2012
SC No. 905/2016
FIR No. 721/2010
U/s 307/34 IPC
P.S. Shakarpur

In the matter of :

State

versus

1) Shanti Swaroop,
S/o Ram Niwas,

2) Deepak @ Dhupal,
S/o Ram Niwas,

3) Ram Gopal,
s/o Ram Niwas,

4) Kuwar Pal,
S/o Ram Niwas,

5) Ram Babu,
s/o Ram Niwas,

6) Bharti,
s/o Ram Niwas,

All six accused
R/o B-582,
Gali No. 2, Ganesh Nagar-II,
Shakarpur, Delhi.

7) Ram Niwas,
S/o Laxmi Das,
R/o B-582, Gali No. 2,
Ganesh Nagar-II,

Shakarpur, Delhi.
(Proceedings against him already abated vide order dated 11.10.2018.)

8) Prithvi Raj,
S/o Neki Ram,
R/o S-601, Nehru Enclave,
Shakarpur, Delhi.
(Proceedings against him already abated vide order dated 31.10.2015.)

9) Vishal,
s/o Satish Kumar,
R/o Khas Shakarpur,
near Sanjay Park, Delhi.
(He was declared a Proclaimed Offender vide order dated 03.07.2015.)

Date of Institution	:	19.04.2012
Date of reserving Judgment	:	31.10.2022
Date of pronouncement	:	07.11.2022

Appearance

For the State	:	Shri Rakesh Mehta, Addl. Public Prosecutor.
For accused persons	:	Shri U.A.Khan, advocate.

JUDGMENT

1) Briefly stated the facts of the present case are that at 21.44 hours information was received at PS Shakarpur via PCR call that house no. 366, First Floor, Gali No. 1, near gate (fatak) near a temple near Shakarpur Gate, Ganesh Nagar-II, 15 to 20 persons had entered a house and were quarreling. The said Sessions Case No. 905/2016 Page 2/31 ASJ-04/East/KKD/Delhi information was recorded in DD No. 63A Ex. PW7/A and the same was assigned to SI Pramod, who left for the spot, and reached H.No. 366, 1st Floor, Gali no. 1, near fatak, Shakarpur, where they were informed that injured had already been removed to the LBS Hospital. Subsequently, another PCR call was received at PS Shakarpur at 21.45 hours regarding a quarrel at B582, Ganesh Nagar-II, Shakarpur. DD No. 64A Ex.PW12/G was recorded in that regard and the same was assigned to SI Pradeep. On receipt of DD No. 64A regarding quarrel, SI Pradeep alongwith Ct. Ramvir reached the spot i.e. B582, Ganesh Nagar-II, Shakarpur where they came to know that injured had already been shifted to LBS Hospital by PCR van. They reached LBS Hospital and obtained the MLC of injured Hari Shankar i.e. MLC No. 9772 of 2010 Ex.PW4/A. Injured was fit for statement, however, he was complaining of headache. IO SI Pradeep recorded the statement of the injured Ex.PW2/A, wherein injured Hari Shankar stated that he was residing at H. No. 366, Ganesh Nagar-II, Gali No.1, Shakarpur, Delhi. On 31.8.2010 at about 8.45pm at Balaji Mandir, Gali No.2, he alongwith Babulal Sharma Pradhan, Santosh Kumar and 2/3 persons of the neighbourhood had gone for cleaning the temple.

Meanwhile, Ram Niwas alongwith his sons Shanti Swaroop, Bharti, Ram Babu, Ram Gopal, Kunwar Pal, Prithvi Raj and their known persons namely Vishal and Ghaplu came to the temple and all of them together nabbed him and took him to his house by dragging him on the floor and started to beat him very badly. Ram Niwas said that the complainant should be finished and he should not escape alive. At this, Shanti Swaroop, Bharti, Ram Babu, Ram Gopal held him with his arms and legs and Kunwar Pal hit him Sessions Case No. 905/2016 Page 3/31 ASJ-04/East/KKD/Delhi on his head with a Danda. Pritvhi Raj started strangulating his neck and Vishal and Ghaplu hit him on his back with some hard object. Meanwhile someone called the police and PCR van brought him to LBS hospital. Ram Niwas was his neighbour at B582 and those persons had tried to kill him and his brother Manoj after entering into their house and also tried to kill him today.

2) On the basis of the statement of the complainant Ex.PW2/A, FIR bearing no. 721/2010 was registered at PS Shakarpur on 01.09.2010 U/s 307/34 IPC.

3) Further investigation was conducted and IO went to the spot where witnesses of the incident namely Pradhan and Santosh were present and informed the IO that they were eye- witnesses of the incident, however they did not give their statement as they were apprehensive that a quarrel might occur. On their pointing out of the place of incident, IO prepared site plan Ex.PW12/B. The said witnesses also pointed out the house of accused persons i.e. B582, Ganesh Nagar-II, Shakarpur. IO alongwith Ct. Ramvir went to the said house where six accused persons namely Shanti Swaroop, Deepak @ Ghaplu, Ram Gopal, Vishal, Ram Niwas and Kunwar Pal were found present and were arrested. Their personal search was conducted and disclosure statement was recorded. The accused persons got recovered two dandas used by them at the time of incident, from behind the main door of their above mentioned house. The same were seized vide seizure memo Ex.PW7/B. Case property was deposited in the Malkhana. Accused persons were got medically examined. IO Sessions Case No. 905/2016 Page 4/31 ASJ-04/East/KKD/Delhi recorded the statements of Ct. Ramvir, public witnesses Pradhan and Santosh and SI Pramod, who had gone to H.No. 366, 1 st Floor, Gali no. 1, near Fatak, Shakarpur on receipt of DD no. 63A. Accused persons were produced before court and remanded to JC. IO made efforts to arrest remaining three accused persons who were absconding namely Prithvi Raj, Ram Babu and Bharti, however, they could not be apprehended. Subsequently, on 06.10.2010 accused Prithvi Raj produced his anticipatory bail order at the police station and he was arrested. On 08.10.2010, accused Ram Babu and Bharti came to the police station and produced their anticipatory bail orders and were formally arrested by the IO. IO obtained opinion on the injury and the injuries were found to be 'simple'. IO recorded statement of witnesses.

4) After completion of the investigation, charge-sheet was filed against accused persons namely Shanti Swaroop. Deepak @ Ghaplu, Ram Gopal, Vishal, Ram Niwas, Kunwar Pal, Ram Babu, Bharti, Prithvi Raj u/s 307/34 IPC. After compliance of Section 207 Cr.P.C., vide order dated 16.04.2012, the case was committed to the sessions court for 19.04.2012 by the Ld. MM (East).

Charge :

> 5) Vide order dated 03.07.2012 charge was framed against accused persons namely Shanti Swaroop. Deepak @ Ghaplu, Ram Gopal, Vishal, Ram Niwas, Kunwar Pal,

Ram Babu, Bharti, Prithvi Raj u/s 307/34 IPC, to which they pleaded not guilty and claimed trial.

Sessions Case No. 905/2016 Page 5/31 ASJ-04/East/KKD/Delhi

6) During trial accused Vishal was declared PO vide order dated 03.07.2015. Proceedings accused Ram Niwas abated on 11.10.2018 and against accused Prithvi Raj proceedings abated on 31.10.2015.

Prosecution Evidence :

7) In order to prove its case, the prosecution examined following 12 witnesses.

(i) PW1 Sh.Babu Lal Sharma - public witness.

(ii) PW2 Sh. Hari Shankar - complainant himself.

(iii) PW3 HC Harpal Singh, who was posted at PCR at Romeo

-27. Upon receipt of a call regarding quarrel from Control Room, they reached at H. No. D-582, Ganesh Nagar, Shakarpur, Delhi.

They met injured Hari Shankar and took him to LBS Hospital, Khichripur, Delhi and got him admitted there.

(iv) PW4 Dr. Sushil Kumar, who medically examined the complainant Hari Shankar and prepared his MLC Ex.PW4/A.

(v) PW5 SI Sumer Singh, Duty Officer, who registered the FIR Ex.PW5/A on the basis of rukka produced by Ct. Rambir sent by SI Pradeep.

(vi) PW6 Sh. Santosh Kumar - public witness.

Sessions Case No. 905/2016 Page 6/31 ASJ-04/East/KKD/Delhi

(vii) PW7 Insp. Pramod Kumar. He deposed that upon receipt on DD No.63A Ex.PW7/A he reached at H. No.366, 1 st Floor, Gali No.1 and came to know that injured had already been taken to LBS hospital. He went to LBS hospital where SI Pradeep and Ct. Rambir were found present. Thereafter, investigation regarding preparation of site plan, arrest of accused persons, preparation of seizure memos of dandas was conducted by the IO in his presence. He could not identify the accused persons before the court due to lapse of time. He could not tell the number of dandas that were got recovered by which of the accused persons and he could not identify the recovered dandas.

PW7 was cross-examined by ld. APP for the State, wherein he affirmed that two wooden dandas were recovered which were kept behind main gate of H.No.B582, Ganesh Nagar, Delhi at the instance of accused persons. The said dandas were identified by PW7 as Ex.P1 and P2. He denied that he was intentionally not identifying the accused persons as he had been won over by them.

(viii) PW8 Sh. Devender Yadav - Record Clerk, who produced the treatment record of patient Hari Shankar at GTB hospital. The said record is Ex.PW8/A (colly).

(ix) PW9 Dr. Nitij Gupta, Radiologist, DMRD, N-2 Imaging, who had examined CT scan film of injured Hari Shankar vide MLC No.9772/2010 who was referred to him by GTB hospital. After examination of CT scan film he prepared his report vide Ex.PW9/A. Sessions Case No. 905/2016 Page 7/31 ASJ-04/East/KKD/Delhi

(x) PW10 HC Rambir Singh, part of investigation and he reached the spot i.e. B582, Ganesh Nagar-II, Gali No.1, Shakarpur on receipt of DD regarding quarrel. Upon reaching the spot, they came to know that injured had been taken to LBS hospital. He alongwith SI Pradeep Kumar, IO reached LBS hospital and obtained MLC of the injured. IO recorded statement of the injured and after endorsing the same handed the same to PW10 to get the FIR registered. PW10 got the FIR registered at the PS and handed over the rukka and copy of FIR to SI Pradeep Kumar at the spot, where two public witnesses also informed about the incident. Accused persons Shanti Swaroop, Deepak, Ram Gopal, Vishal, Ram Niwas and Kunwar Pal were arrested from the spot vide arresst memo Ex.PW10/A to Ex.PW10/F. Their personal search was conducted vide Ex.PW10/G to Ex.PW10/M (I omitted) At the pointing out of the abovesaid accused persons dandas were seized vide seizure memo Ex.PW7/B. Accused persons were got medically examined and sent to JC.

PW10 identified the accused persons by their faces, however not by their names. He identified the two dandas Ex.P1 and P2 which were seized in his presence. Upon cross- examination by Ld. APP for State the witness affirmed the identify of the accused persons by taking their names on being pointed out by ld. APP for State. He stating that he could not identify the accused persons by their names on account of lapse of time.

Sessions Case No. 905/2016 Page 8/31 ASJ-04/East/KKD/Delhi

(xi) PW11 Sh. Devender Kumar Yadav, who produced the summoned record from GTB hospital i.e. treatment record of injured Hari Shankar with reference to MLC no.9772 of 2010 as referred from LBS hospital vide Ex.PW11/A (colly).

(xii) PW12 SI Pradeep Kumar, IO of the case.

Statement of accused persons :

> 8) After conclusion of prosecution evidence, statement of the accused persons Ram Babu, Shanti Swaroop, Deepk @ Ghaplu, Ram Gopal, Kunwar Pal, Bharti, were recorded under Section 313 Cr.P.C wherein they denied the correctness of all the

incriminating circumstances appearing in the evidence against them and stated that they were innocent and were falsely implicated in the present case. They stated that they alongwith other accused persons had not given any beatings to injured Hari Shankar. In fact, Hari Shankar came to their house and gave a warning that the accused persons should withdraw the case bearing FIR No. 181/2010 PS Shakarpur registered against him.

When they refused to withdraw the case against him, he attacked upon accused Ram Babu with a knife and he saved himself but accused Vishal received a knife injury on his hand. In order to save himself, complainant Hari Shankar falsely implicated them in the present case with the help of local police of PS Shakarpur.

9) In their defence, accused persons led the evidence of DW1 Kamal, who produced the summoned record i.e. MLC No. 9791 of 2010 dated 01.09.2010 of injured Vishal. The same is Ex.DW1/A. Sessions Case No. 905/2016 Page 9/31 ASJ-04/East/KKD/Delhi

10) The accused persons also examined DW2 Ahlmad from the court of Ld. ASJ-03, East District, KKD Courts, who produced the record of the case bearing FIR No. 181/2010, PS Shakarpur titled as State vs. Hari Shankar @ Mula. He proved the judgment dated 19.02.2019 in the abovesaid matter as Ex.DW2/A; order on sentence dated 07.03.2019 Ex.DW2/B; testimony of PW6 Dr. K. Tyagi Ex.DW2/C, testimony of PW8 Dr. Ajay Jain Ex.DW2/D; testimony of PW11 Dr. Geeta Anand Ex.DW2/E; FIR dated 09.03.2010 bearing No.181/2010, PS Shakarpur Ex.DW2/F. Arguments :

11) It is contended by ld. Counsel for the accused persons that they have been falsely implicated in the present case as a counter blast to case bearing FIR No.181/2010 PS Shakarpur in which the complainant was an accused. The said case was filed by the accused persons in the present case against the complainant and the complainant herein has been convicted in the said case. It is stated that though the complainant has averred that he was dragged to the house of the accused persons and was beaten up there, however only injuries of simple nature were found on the person of the complainant. In the event, there was an intention to kill the complainant, there was no occasion for the complainant to have come out of the house of the accused persons with merely simple injuries. It is argued that the complainant has named all the family members in the complaint in order to rope in all family members in the present case as a counter-blast to FIR No.181/2010, PS Shakarpur. It is further Sessions Case No. 905/2016 Page 10/31 ASJ-04/East/KKD/Delhi stated that on the date of incident the complainant was the aggressor and he had come to the house of accused persons and tried to cause injury to accused Ram Babu with a knife, however he saved himself but the complainant caused injury to accused Vishal on his hand, which is also reflected in MLC of accused Vishal i.e. Ex.DW1/A. In fact, DD No. 65A is also on record Ex.PW12/H as per which injury had been caused to one person with a knife and he was admitted in the ICU. It is also argued that there was neither any intention or the knowledge as required under section 307 IPC. It is accordingly prayed that the accused persons are liable to be acquitted for the offences they are

charged with.

12) On the other hand, it is contended by ld. Addl. PP for the State that from the testimony of PW2, the complainant, it is evident that the accused persons had assaulted the complainant with the intention to kill him. The injury was caused on the scalp of the complainant, a bruise was found on the neck of the complainant as the accused persons had tried to strangulate him.

Abrasions were also found on other parts of the body. Since injury was also found on the scalp and was caused with a danda on a vital part of the body, hence, the accused persons are liable to be convicted u/s 307 r/w Section 34 IPC.

Testimonies of material public witnesses:

13) Sh. Babu Lal Sharma was examined as PW1. He deposed that he did not remember date, month and year, however, it was about 2-3 years back on the occasion of Janmashtmi festival he alongwith Santosh were cleaning temple Sessions Case No. 905/2016 Page 11/31 ASJ-04/East/KKD/Delhi from inside and 2-3 other persons were cleaning outside. At about 8/9 pm after hearing noise, he came out of the temple but could not find anything. He further deposed that thereafter he returned back inside temple but on hearing the noises again he came out of temple and found police officials were present alongwith many public persons. He then deposed that he had not witnessed any incident nor anything happened in his presence. In cross-examination by ld. Addl. PP he stated it to be correct that Hari Shankar s/o Ram Babu was also cleaning the temple from outside, at their request. He also admitted that he heard noise of hue and cry from outside, however, he could not say whether said voices were of Hari Shankar.

14) PW2 Hari Shankar, complainant deposed that on 31.08.2010 at about 8.45 pm he alongwith Babu Lal Sharma, President, Santosh Kumar and few other local persons had gone to clean Balaji Mandir situated in Gali No.2, Ganesh Nagar. He further deposed that the temple was situated in front of house of accused persons. He identified the accused persons before the court. He then deposed that while they were cleaning the temple accused Ram Niwas alongwith his sons namely Shanti Swaroop Ram Gopal, Ram Babu, Bharti Kunwar Pal, Prithvi Raj and two other persons Ghaplu and Vishal came there and caught him and dragged into their house. After taking him into their house, they closed the door of the house and started beating him while Ram Niwas said that he should not be allowed to escape and he should be killed. He further deposed that accused Shanti Swaroop, Bharti, Ram Babu and Ram Gopal caught his arms and legs and accused Kunwar Pal attacked on his head with a danda, while Sessions Case No. 905/2016 Page 12/31 ASJ-04/East/KKD/Delhi accused Vishal and Ghaplu hit on his waist with some hard object and accused Prithvi Raj started pressing his neck. He then deposed that someone had informed the police and police arrived there and took him to LBS hospital. He deposed that he was

provided treatment at LBS hospital and police came to the hospital in the night and recorded his statement Ex.PW2/A. He deposed that next day, he was referred to GTB hospital, where he remained admitted for several days i.e. 20-22 days. He deposed that accused persons were already known to him since childhood.

15) PW6 Santosh Kumar in his deposition has stated that he had been residing at H.No. 439, Gali No. 1, Ganesh Nagar-II, Shakarpur, Delhi, since 1992. In the year 2010 he was posted as Constable with Delhi Police at DAP, Ist Battalion, KW Camp. On 31.08.2010, at about 08.00/08.30 pm he was present at his house. Pradhan-Babu Lal Sharma, Hari Shankar and others had come to him for the purpose of cleaning Balaji Mandir on the occasion of Janamashtmi. He alongwith Babu Lal Sharma at about 08.00/08.30 pm was present inside the said temple, he again said, he did not go inside the said temple. However, he reached in Gali No. 2 from his house and noticed that a crowd was present there and a PCR van was also present there. Hari Shankar was lying in injured condition in front of said temple. He was taken to the hospital by PCR. Many police officials were present at the house of accused Ram Niwas. He correctly identified accused Ram Niwas, present in the court. He knew remaining accused persons present in the court alongwith accused Ram Niwas by their faces but he did not knew their names. He deposed that none of the accused were seen by him on the day of incident. He Sessions Case No. 905/2016 Page 13/31 ASJ-04/East/KKD/Delhi was declared hostile by the Ld. Addl.P.P. for the State and despite detailed cross-examination he stuck to his stand and did not support the prosecution case.

16) PW2 Sh. Hari Shankar, the complainant herein, has supported the prosecution case and deposed regarding the incident which took place on 31.08.2010 at about 08.45 pm, when he was present at Balaji Mandir, Ganesh Nagar, alongwith Babu Lal Sharma and Santosh Kumar and other local persons. He also described that the accused persons came there, caught hold of him and dragged him to their house which was situated in front of the temple. After taking him to their house they closed the door of the house and started beating him. Accused Ram Niwas extorted that he should be killed and not allowed to escape. Accused Shanti Swaroop, Bharti, Ram Babu, Ram Gopal caught his arms and legs and accused Kunwar Pal attacked with a danda on his head. Accused Vishal and Ghaplu hit on his waist with some hard object and accused Prithvi Raj started pressing his neck and someone informed the police.

17) In his cross-examination PW2 deposed that he was cleaning the temple when the accused persons caught him. He affirmed that there was previous enmity between him and the accused persons prior to the incident. He denied that on 01.03.2010 he had beaten accused Ram Babu, Ram Niwas and his daughter Rani after entering into their house and caused injury to Ram Babu with iron rod. He affirmed that FIR No. 181/2010, PS Shakarpur, was registered against him. He denied that he was pressurizing the accused persons to withdraw the said Sessions Case No. 905/2016 Page 14/31 ASJ-04/East/KKD/Delhi case otherwise they would be falsely implicated in some false case with help of police and due to the said reason, he implicated them in the present false case. He also stated that he was not carrying the knife when he had gone to clean the temple. He denied that he had taken a knife to the house of accused persons and attacked Ram Babu, who was saved, but accused Vishal suffered injuries on his arm. He denied that he was discharged from LBS Hospital on the same day and vol. that he was referred to GTB Hospital. He denied that he had suffered injuries

due to a fall or that the same were self inflicted injuries to falsely implicate the accused persons. The witness was also cross- examined by the Ld. Counsel for accused Prithriraj, however, accused Prithvi Raj expired during trial and the proceedings against him abated vide order dated 31.10.2015.

18) PW1 Babu Lal Sharma and PW6 Santosh Kumar did not support the prosecution version even though they were stated by the complainant to be present at the time of incident.

19) In these circumstances, even though PW1 and PW6 did not support the material allegations against the accused persons, however, PW1 admitted that the complainant was also cleaning the temple from outside at their request and that he heard noise of hue and cry from outside, though he could not identify the voice of the person or if the voice was of Hari Shankar and he denied the suggestion that the voice was of Hari Shankar. He affirmed that there was enmity between Hari Shankar and Ram Niwas and his children. He denied the suggestions put to him regarding the incident as stated by him in Sessions Case No. 905/2016 Page 15/31 ASJ-04/East/KKD/Delhi his statement Ex. PW1/A. He denied that he was suppressing the truth in order to save the accused persons. He was not cross- examined by the ld. Counsel for the accused persons. Accordingly, even though PW1 did not support the prosecution case, however, he admitted that the complainant was cleaning the temple at the time of incident.

20) Hence, PW2 complainant deposed in detail regarding the incident and the role of each of the accused persons in the incident. The complaint Ex. PW2/A is also consistent with the testimony of PW2 on those aspects. The testimony of PW2 also stands corroborated by PW1 to the extent that the complainant was cleaning the temple at the time of incident and that there was prior enmity between the complainant and accused Ram Niwas and his children.

21) The medical examination of the complainant Hari Shankar was conducted by PW4 Dr. Sushil Kumar vide MLC bearing no. 9772/2010 Ex. PW4/A. PW4 deposed that on 31.08.2010 he had examined patient Hari Shanker, aged about 35 years, who was brought with alleged history of assault. He was conscious and oriented. On his examination he found the following injuries :

> (i) Mild tender - swelling with red abrasion present over right parietal region of scalp about 4 x 4 cms.
>
> (ii) Red Color bruise present over nape of neck, left arm, right scapular region and right lumbar region.
>
> (iii) Red abrasion and bruise present over right chest and left side of abdomen.
>
> Sessions Case No. 905/2016 Page 16/31 ASJ-04/East/KKD/Delhi
>
> (iv) Tenderness and mild swelling with red bruise present over right elbow.
>
> 22) The patient was thereafter referred to department of Surgery and Ortho for detailed examination, management and opinion. At the time of his medical

examination as per Ex.PW4/A the patient was conscious / oriented and his vitals were normal.

23) In his cross-examination PW4 deposed that the patient had sustained injuries due to assault. He stated that it could not be ruled out that the injuries mentioned in Ex. PW4/A could be caused due to a fall on hard surface. No opinion was sought from him regarding the object with which the said injuries were caused. He deposed that the colour of the bruises and abrasions was mentioned as red, which meant that the injuries were fresh in nature. He affirmed that the patient was not bleeding profusely at the time of his MLC. Opinion on nature of injuries was 'Simple'.

24) It is contended by ld. Counsel for the accused persons that they have been falsely implicated in the present case and it is evident from the testimony of PW4 that the injuries could be caused due to fall on hard surface. The said witness was not cross-examined by the State on the said aspect and hence, the injuries have to be treated as having been caused due to a fall.

25) Perusal of the testimony of PW4 reveals that PW4 has stated that it could not be ruled out that the aforesaid injuries Sessions Case No. 905/2016 Page 17/31 ASJ-04/East/KKD/Delhi could be caused due to fall on hard surface. PW4 accordingly has not conclusively stated that the injuries in issue were caused due to fall on hard surface. Moreover, the injuries as reflected in Ex. PW4/A have been caused over right parietal region of the scalp, there are bruises over nape of neck, left arm, right scapular region, right lumber region, abrasions and bruises also were present over right chest and left side of abdomen, bruise was also present over right elbow. The injuries/bruises/abrasions were present on different parts of the body both on the left and the right side, thereby indicating that such injuries could not have been caused by merely falling on the hard surface. PW4 also did not emphatically state that injuries were caused due to falling on hard surface only. In these circumstances, the contention of the ld. Counsel for the accused persons in this regard holds no ground.

26) It is deposed by PW2 that at the time of incident, accused Kunwar Pal hit him on his head with a danda. A mild tender swelling with red abrasion was present over right parietal region of the scalp of about 4x4 cms, thereby corroborating the version of the complainant. Injuries are also reflected upon the nape of neck of the complainant and thereby corroborating his version that accused Prithvi Raj had pressed his neck at the time of incident. Bruise was also present on left arm, right scapular region, right lumbar region, right chest and left side of abdomen, right elbow thereby corroborating the version of the complainant that he was beaten by the accused persons. Accordingly, the MLC Ex.PW4/A is consistent with the testimony of the complainant Sessions Case No. 905/2016 Page 18/31 ASJ-04/East/KKD/Delhi regarding the manner of injury and the places where the injuries were inflicted upon him.

27) The injuries upon complainant Hari Shankar, as discussed are not self - inflicted injuries. It is deposed by PW-2 that he remained admitted at the GTB Hospital for 20-22 days.

The treatment record of GTB Hospital is Ex.PW8/A and Ex.PW11/A. Ex.PW8/A (colly) is dated 01.09.2010. Ex.PW11/A is the Patient Discharge Summary of Hari Shankar, complainant herein indicating date of admission from 03.09.2010 and discharge on 16.09.2010. As per Ex.PW9/A dated 01.09.2010 the CT Scan of brain revealed no obvious abnormality. The injuries have been opined to be simple in nature by Dr. Robin on 21.09.2010 vide Ex.PW11/B. Hence, as per the medical records placed on record, the patient Hari Shankar, complainant herein remained admitted at GTB Hospital between 03.09.2010 till 16.09.2010.

28) It has been stated by the complainant that he was hit on his head by a danda by the accused persons at the time of incident. The danda are Ex.P1 and Ex.P2. Ex.P1 and Ex.P2 were not shown to the complainant at the time of recording of his testimony. It is contended by Ld. Counsel for the accused persons that the the said danda Ex.P1 and Ex.P2 were not recovered pursuant to disclosure statements of the accused persons and hence, they are not admissible in evidence in terms of section 27 of Indian Evidence Act. It is also contended by the Ld. Counsel for the accused persons that there is only one disclosure statement on record of accused Ram Niwas Ex.PW12/C and the Sessions Case No. 905/2016 Page 19/31 ASJ-04/East/KKD/Delhi signature of all the other accused persons have been obtained on the said disclosure statement. It is urged that the said disclosure statement of accused Ram Niwas cannot be read against the other accused persons or even against accused Ram Niwas being not in accordance with law as there cannot be a common disclosure statement of all the accused persons. It is stated that the recovery of a danda i.e. an alleged weapon of offence has not been made pursuant to the said disclosure statement, Ex.PW12/C as it no where states that the accused persons have got recovered the said danda Ex.P1 and Ex.P2 from their house.

29) In this regard it is relevant to note that there is one disclosure statement Ex.PW12/C of accused Ram Niwas on record. The same bears signatures of all the accused persons. The said disclosure statement merely mentions that the accused persons had beaten Hari Shankar with a danda that was kept behind the door of their house. The said disclosure statement nowhere mentions that the accused persons had kept the danda behind the door of their house after committing the offence or that they had shown the place where the danda was kept to the police or that they had got the said danda recovered from behind the door in their house. In these circumstances, it cannot be stated that the recovery of danda Ex.P1 and Ex.P2 was made pursuant to the disclosure statement of the accused persons and hence, their recovery is inadmissible in evidence.

30) It is however, noteworthy that recovery of the weapon of offence is not a sine qua non to establish the offence under section 307 IPC. The complainant has deposed that the Sessions Case No. 905/2016 Page 20/31 ASJ-04/East/KKD/Delhi injury was caused on his head with a danda. MLC Ex.PW4/A reveals a mild tender swelling with red abrasion present over right parietal region of his scalp of about 4x4 cms, which injury could have been caused with a danda, hence, the manner in which the complainant received injury on his head i.e. with a danda is quite plausible.

31) It is further argued that there is a four hours delay in recording the FIR as the incident occurred at 8:45 PM on 31.08.2010 whereas the FIR was registered at 0052 hours. In this regard it is noteworthy that DD no. 63-A was recorded at 21:44 hours when information was first received at the police station and immediately thereafter DD No.64-A was recorded at 21:45 hours regarding a quarrel at B-582 Ganesh Nagar-II, Shakarpur. SI Pradeep Kumar reached the spot and the injured was not found there. SI Pradeep Kumar along with Ct. Rambir reached LBS Hospital. The statement of the injured/ complainant was recorded. SI Pradeep Kumar made an endorsement on the statement of the complainant and prepared a rukka which was taken to PS for registration of FIR by Ct. Rambir at 00:30 hours on 01.09.2010. The rukka was handed over to Ct.Rambir for registration of the FIR and the same was registered at 00:52 hours on 01.09.2010. In these circumstances, there is no unexplained delay in registration of the FIR and the same cannot be a ground for throwing out the prosecution case.

Defence of the accused persons :

> 32) In their statements recorded u/s 313 Cr.P.C. the accused persons stated that they were innocent and were falsely Sessions Case No. 905/2016 Page 21/31 ASJ-04/East/KKD/Delhi implicated in the present case. They stated that they alongwith other accused persons had not given any beatings to injured Hari Shankar. In fact, Hari Shankar came to their house and gave a warning that the accused persons should withdraw the case bearing FIR No. 181/2010 PS Shakarpur registered against him.

When they refused to withdraw the case against him, he attacked upon accused Ram Babu with a knife and he saved himself but accused Vishal received a knife injury on his hand. In order to save himself, complainant Hari Shankar falsely implicated them in the present case with the help of local police of PS Shakarpur.

33) In their defence, accused persons led the evidence of DW1 Kamal, who produced the summoned record i.e. MLC No. 9791 of 2010 dated 01.09.2010 of injured Vishal. The same is Ex.DW1/A.

34) The accused persons also examined DW2 Ahlmad from the court of Ld. ASJ-03, East District, KKD Courts, who produced the record of the case bearing FIR No. 181/2010, PS Shakarpur titled as State vs. Hari Shankar @ Mula. He proved the judgment dated 19.02.2019 in the abovesaid matter as Ex.DW2/A, order on sentence dated 07.03.2019 Ex.DW2/B, testimony of PW6 Dr. K. Tyagi Ex.DW2/C, testimony of PW8 Dr. Ajay Jain Ex.DW2/D, testimony of PW11 Dr. Geeta Anand Ex.DW2/E, FIR dated 09.03.2010 bearing No.181/2010, PS Shakarpur Ex.DW2/F.

35) Accordingly, as per the accused persons the present case was lodged by the complainant against them as a counter Sessions Case No. 905/2016 Page 22/31 ASJ-04/East/KKD/Delhi blast to FIR No. 181/2010, dated 09.03.2010 registered at PS Shakarpur. The fact regarding filing of the FIR 181/2010 has been admitted by PW2. Hence, admittedly there was prior enmity between the accused persons and the complainant PW-2. The accused persons have also stated that at the time of incident accused Vishal was also injured with a knife by the complainant, who had taken a knife to

the house of accused persons and attacked accused Ram Babu, who saved himself and at that time accused Vishal suffered injuries in his hand. MLC of accused Vishal bearing no. 9791/2010 dated 01.09.2010 is also Ex. DW1/A, which indicates a cut wound on left arm laterally. The opinion on the nature of injury of injured Vishal on Ex.DW1/A is indicated to be 'simple'.

36) The accused persons have thus admitted their presence at the spot at the time of incident by stating that the injured Hari Shankar had come to their house and the incident took place at that time.

37) However, no complaint was filed by the accused persons before the police authorities nor any complaint was filed before the court in relation to injury caused to accused Vishal on his hand, hence, the version of the accused persons that accused Vishal was injured by the complainant at the time of incident itself remains unverified. In fact in their statement recorded under section 313 Cr.P.C. the accused persons have stated that the complainant had come to their house and threatened the accused persons to withdraw their case bearing FIR no. 181/2010 against the complainant. It is unfathomable that the complainant would Sessions Case No. 905/2016 Page 23/31 ASJ-04/East/KKD/Delhi go alone to the house of the accused persons to threaten them inside their own house and also be able to cause injury with a knife on one of the accused persons. The defence of the accused persons in this regard therefore does not inspire confidence.

38) It is also contended by Ld. Counsel for the accused persons that none of the independent witnesses have supported the prosecution version and the only witness relied upon by the prosecution is the complainant, PW-2. The complainant has himself admitted that a prior case bearing FIR no. 181 of 2010 was registered by the accused persons against the complainant herein on 09.03.2010, thereby indicating that the accused persons have been falsely implicated by the complainant.

39) In this regard, it is noteworthy that the accused persons have in their statements recorded under section 313 Cr.P.C. have stated that at the time of incident the complainant had come to their house and had caused injuries to accused Vishal. Hence, the accused persons have admitted their presence at the time of incident. The MLC of the complainant Ex.PW4/A reveals that injuries were in fact sustained by him, thereby corroborating the version of the complainant. The injuries have not been proved to be self -inflicted injuries. Hence, the fact that there was prior animosity between the complainant and the accused persons does not absolve the accused persons of the offence in issue. Merely, because PW-1 and PW-6 have turned hostile is no reason to disbelieve the version of the complainant, who himself is an injured witness.

Sessions Case No. 905/2016 Page 24/31 ASJ-04/East/KKD/Delhi

40) The accused has been charged for attempt to murder under section 307 Cr.P.C. Section 307 IPC relating to attempt to murder provides as under :

> "Whoever does any act with such intention or knowledge, and under such circumstances that, if he by that act caused death, he would be guilty of murder, shall

> be punished with imprisonment of either description for a term which may ex- tend to ten years, and shall also be liable to fine, and if hurt is caused to any person by such act, the offender shall be li- able either to imprisonment for life, or to such punishment as is hereinbefore mentioned."

41) In order to determine if the accused persons are guilty of the offence under section 307/34 IPC, it would be worthwhile to consider the decision of Hon'ble Supreme Court of India in the matter of State of Madhya Pradesh v. Kedar Yadav, 2009 (17) SCC 280, wherein the Hon'ble Supreme Court of Indian enunciated the law in relation to Section 307 IPC and observed that for conviction under section 307 IPC it is sufficient if there is an intention or knowledge coupled with some overt act in execution of such intention / knowledge. It is not necessary that bodily injury capable of causing death should have been inflicted. If the act, irrespective of its result is done with the intention or knowledge and under the circumstances mentioned in the sections, the same may result conviction under section 307 IPC and the accused cannot be acquitted merely because the injuries inflicted on the victim were in the nature of a simple hurt.

42) Accordingly in order to prove the offence under section 307 IPC it is essential to prove that there was intention or knowledge coupled with some overt act in execution of such intention / knowledge.

Sessions Case No. 905/2016 Page 25/31 ASJ-04/East/KKD/Delhi

43) Similarly, in Vikash Bhardwaj @ Sonu and Anr. V. State of NCT of Delhi, 2014 (2) JCC 996 : 2014 (15) R.C.R. (Criminal) 63, the Hon'ble Delhi High Court culled out the ingredients of section 307 IPC and observed as follows:

> "21. The essential ingredients required for a conviction under section 307 of the IPC are:
>
> "(i) That the death of a human being was attempted;
>
> (ii) That such death was attempted to be caused by, or in consequence of the act of the accused;
>
> (iii) That such act was done with the intention of causing death; or that it was done with the intention of causing such bodily injury as; (a) the accused knew to be likely to cause death; or (b) was sufficient in the ordinary course of nature to cause death, or that the accused attempted to cause death by doing an act know to him to be so imminently dangerous that it must in all probability cause (a) death, or (b) such bodily injury as is likely to cause death, the accused having no excuse for incurring the risk of causing such death or injury.

22. All the ingredients of the offence must be present before a conviction can be ordered. The injuries sustained, the manner of the assault and the weapons used are all relevant factors. The intention or knowledge which is foremost ingredient of section 307 of the IPC must precede the act

attributed to the accused.

This intention/knowledge has to be gathered from the circumstances and not necessarily from the ensuing result."

(emphasis supplied) Sessions Case No. 905/2016 Page 26/31 ASJ-04/East/KKD/Delhi

44) Viewed in this light, the testimony of the witnesses has to now be examined to consider whether the conviction can be sustained under section 307 IPC on the basis of the evidence led in the present matter. As discussed herein above, before the conviction can be sustained under section 307 IPC, all the ingredients of section 307 IPC ought to be fulfilled. The injuries sustained, the manner of assault and the weapon used are all relevant factors. The foremost ingredients of section 307 IPC are the intention or knowledge which must precede the act attributed to the accused. The intention / knowledge has to be gathered from the surroundings circumstances and not necessarily from the results that follow, which may result in simple or grievous injury. In order to prove an offence under section 307 IPC essential mensrea to constitute the said offence has to be proved. Mensrea can be inferred from the kind of weapon used, nature of injury, place of injury, motive etc. The onus lies on the prosecution that the accused has caused an act with intention/knowledge and under such circumstances that if by that act death was caused, he would be guilty of murder.

45) In the present case, on the date of incident, the complainant was cleaning the temple and at that time, the accused persons whose house was opposite the temple, came there and dragged the victim to their house at B-582, Ganesh Nagar-II, Shakarpur, Delhi and had beaten the complainant at their house. It is proved on record that there was prior animosity between the complainant and the accused persons owing to the previous FIR that had been registered against the complainant by the accused persons bearing FIR No.181/2010. The said FIR was Sessions Case No. 905/2016 Page 27/31 ASJ-04/East/KKD/Delhi registered on 09.03.2010 that is about six months prior to the present FIR. As per the version of the complainant the accused Ram Niwas had exhorted that the complainant should not be allowed to escape and he should be killed. Accused Shanti Swaroop, Bharti, Ram Babu and Ram Gopal caught his arms and legs and accused Kunwar Pal attacked on his head with a danda. Accused Vishal and Ghaplu hit him on his waist with some hard object and accused Prithvi Raj started pressing his neck. Hence, the complainant described in detail the specific role of each of the accused persons. The complainant after being beaten in the manner described above was not given any further injuries or beatings by the accused persons. In the event the intention of the accused persons was to kill the complainant, they could have caused further harm to the complainant and would not have left him with simple injuries. It is also not stated by the complainant that the accused persons stopped beating him midway due to arrival of the police or that he was able to escape from the house of the accused persons. The incident occurred when the complainant was cleaning the temple situated in front of the house of the accused persons. There is no assertion that the accused persons were aware that the complainant would be coming there to clean the temple at that time, hence, it cannot be stated that the assault on the complainant was pre-meditated as the accused persons would not have known beforehand of the presence of the complainant at the temple. One injury has been stated to have been given on the head of the complainant by accused Kunwar Pal with a danda and one injury was given with the hard object by

accused Vishal and Ghaplu and accused Prithvi Raj pressed the neck of the complainant. There was one Sessions Case No. 905/2016 Page 28/31 ASJ-04/East/KKD/Delhi complainant as against nine accused persons, hence, in the event the accused persons intended to kill the complainant, they could have attained their object as the complainant was clearly outnumbered by them. Even as per the version of the complainant, no one had come to help him at the time of incident. In the event the accused persons intended to kill the complainant, they could have continued with further harm to the complainant and would not have left him in that state. In these circumstances, it cannot be stated that the accused persons had intended to kill the complainant. Therefore, in the facts and circumstances of the case, the offence under section 307 of the IPC is not made out against the accused persons.

46) The prosecution has placed on record of the complainant Ex.PW8/A and Ex.PW11/A as per which the complainant remained admitted at GTB Hospital between 03.09.2010 till 16.09.2010.

47) As per section 322 of the IPC, a person is said to voluntarily causing grievous hurt- Whoever voluntarily causes hurt, if the hurt which he intends to cause or knows himself to be likely to cause is grievous hurt, and if the hurt, which he causes is grievous hurt, is said "voluntarily to cause grievous hurt."

48) Grievous hurt is defined under section 320 IPC which provides as follows:-

> "Grievous hurt- The following kinds of hurt only are designated as grievous"

First- Emasculation.

Sessions Case No. 905/2016 Page 29/31 ASJ-04/East/KKD/Delhi Secondly- Permanent privation of the sight of either eye. Thirdly - Permanent privation of the hearing or either ear, Fourthly- Privation of any member or joint.

Fifthly - Destruction or permanent impairing of the powers of any member or joint.

Sixthly - Permanent disfiguration of the head or face. Seventhly - Fracture or dislocation of a bone or tooth. Eighthly- Any hurt which endangers life or which causes the sufferer to be during the space of twenty days in severe bodily pain, or unable to follow his ordinarily pursuits."

49) The incident took place on 31.08.2010 at 8:45 PM. The complainant remained in the hospital till 16.09.2010 i.e. for about 17 days. The injuries caused to the complainant have been opined to be simple in nature on Ex.PW4/A. In these circumstances, it cannot be stated that the nature of injuries suffered by the complainant are "grievous hurt" as defined under section 320 IPC. The injuries caused to the complainant were opined to be 'simple' in nature. The injury was caused on the head of the complainant. As discussed hereinabove, the prosecution has not proved the recovery of the said danda used in the offence in accordance with law. Hence, the nature of danda used at the time of incident is not proved on record. Accordingly, the accused persons are held guilty for the offence of simple hurt as defined under section 321 IPC, punishable under section 323 IPC.

50) In view of aforesaid discussion, it is proved on record that accused persons in furtherance of their common Sessions Case No. 905/2016 Page 30/31 ASJ-04/East/KKD/Delhi intention voluntarily caused 'simple' hurt to the complainant Hari Shankar and therefore, they are held guilty and are liable to the convicted for the offence punishable u/s 323/34 IPC. Announced in the open Court on this 7th day of November, 2022 (Deepali Sharma) Additional Sessions Judge-04 East District/KKD Courts/Delhi.

Sessions Case No. 905/2016 Page 31/31 ASJ-04/East/KKD/Delhi